

25STCV15643 25STCV15643

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 25STCV15643 Hearing Date: July 8, 2026 Dept: 732

Donald Bailey v. General Motors, LLC, et al.

Wednesday, July 8, 2026

CASE NUMBER: 25STCV15643

OPPOSED

Defendant General Motors, LLC's Demurrer to the

Complaint

Facts:

This is a lemon law action. The Complaint

alleges as follows. Plaintiff Donald Bailey ("Plaintiff") purchased a

2023 Chevrolet Tahoe on June 22, 2022, with an express written warranty.

(Complaint ¶¶ 6–7.) The vehicle was delivered with defects that could not be remedied within the warranty period. (Complaint ¶¶ 11–14.)

Procedural History: Plaintiff

filed the Complaint on May 29, 2025, alleging five causes of action:

1.

Civ. Code § 1793.2, subd. (d)

2.

Civ. Code § 1793.2, subd. (b)

3.

Civ. Code § 1793.2, subd. (a)(3)

4.

Breach of Implied Warranty of Merchantability

5.

Fraudulent Concealment

This

court on June 11, 2026, granted Defendant's motion for lemon law discovery sanctions, and directed Plaintiff to appear for deposition.

Defendant

filed the present demurrer on August 28, 2025.

Plaintiff

filed an opposition on June 24, 2026.

Defendant

filed a reply on June 29, 2026.

Analysis

I.

DEMURRER

A demurrer should be sustained only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Pro., §§ 430.30, et seq.) In particular, as is relevant here, a court should sustain a demurrer if a complaint does not allege facts that are legally sufficient to constitute a cause of action. (See *id.* § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) 39 Cal.3d 311: "We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*Id.* at p. 318; see also *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 ["A demurrer tests the pleadings alone and not

the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. [Citation.]”)

“In determining whether the complaint is sufficient as against the demurrer ... if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (Khouri v. Maly’s of Cal., Inc. (1993) 14 Cal.App.4th 612, 616.) Such demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (Mahan v. Charles W. Chan Insurance Agency, Inc. (2017) 14 Cal.App.5th 841, 848.)

A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (Schifando v. City of Los Angeles, supra, 31 Cal.4th at p. 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (Krawitz v. Rusch (1989) 209 Cal.App.3d 957, 967.)

Defendant General Motors, LLC (“Defendant”) demurrers to Plaintiff Donald Bailey’s (“Plaintiff”) fifth cause of action for fraudulent concealment, arguing that it fails to allege required elements and is barred by the economic loss rule. (Demurrer at pp. 8–16.)

Defendant argues that Plaintiff fails to allege the elements of fraud. (Demurrer at pp. 9–14.) ‘The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the

concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]’ [Citation.]” (Hambrick v. Healthcare Partners Medical Group, Inc. (2015) 238 Cal.App.4th 124, 162.) The elements of concealment, as with ordinary fraud, must be pleaded with specificity. (See Cansino v. Bank of America (2014) 224 Cal.App.4th 1462, 1472.)

Fraud causes of action must be pleaded with particularity, meaning that the plaintiff must allege “how, when, where, to whom, and by what means the representations were tendered.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.)

Defendant argues that the Complaint fails to adequately plead the information that was concealed or Defendants’ exclusive knowledge thereof for the purposes of a concealment claim. (Demurrer at pp. 9–12.) But the Complaint pleads the information at issue — the existence of a defect in the subject vehicle’s 6.2L engine, which “can result in loss of power, stalling, engine running rough, engine misfires, failure or replacement of the engine.” (Complaint ¶ 47.) It is alleged that Defendant knew of this defect prior to Plaintiffs’ purchase of the vehicle through nonpublic information sources available only to itself, such as testing data, repair orders, and consumer complaints, thus satisfying the requirement that Plaintiff allege a duty to disclose through Defendant’s exclusive knowledge of the defect. (Complaint ¶ 51; Heliotis v. Schuman (1986) 181 Cal.App.3d 646, 651[identifying “exclusive knowledge” as a basis for the duty to disclose].) And it is alleged that Plaintiffs would not have purchased the vehicle had the defects been disclosed to them. (Complaint ¶ 54.) These allegations suffice to plead concealment..

Defendant argues that there was no transactional relationship between the manufacturer and Plaintiff such that it owed a duty to disclose the alleged defect. (Demurrer at pp. 10–11; see Bigler-Engler v. Breg, Inc. (2017) 7 Cal.App.5th 276, 312 [transaction giving rise to duty to disclose “must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large”].) But such a relationship exists here. Although Plaintiff does not allege that they purchased their vehicle from Defendant, it was Defendant that provided them with the warranty that they are here alleged to have breached. (Complaint ¶ 6.) Although Defendant cites authority nominally for the proposition that a warranty contract is not a transaction (Demurrer at p. 11), the authority cited

stands only for the proposition that a manufacturer's obligations under a warranty were insufficiently tied to the sales contract for the manufacturer to invoke an arbitration agreement contained within the agreement. (Ford Motor Warranty Cases (2025) 17 Cal.5th 1122, 1134.) They do not hold that no transactional relationship exists as between a warrantor and warrantee, as is pleaded here.

Defendant finally argues that the fraud claim is barred by the economic loss rule, as Plaintiff has alleged only economic losses arising from the failure of their warranty contract, and thus cannot recover in tort. (Demurrer at pp. 14–16.) Defendant neglects that “tort damages have been permitted in contract cases . . . where the contract was fraudulently induced.” (Robinson Helicopter Co., Inc. v. Dana Corp. (2004) 34 Cal.4th 979, 990.) As Plaintiff

alleges that the purchase of the vehicle was the product of fraudulent concealment, the economic loss rule does not bar their claim on demurrer.

Accordingly, the demurrer is OVERRULED.

Superior Court of California

County of Los Angeles

Department 732

DONALD

BAILEY,

Plaintiffs

v.

GENERAL MOTORS, LLC, et al.,

Defendants.

Case No.:

25STCV15643

Hearing Date: July 8, 2026

[TENTATIVE] RULING RE:

Defendant

General Motors, LLC's Demurrer to the Complaint

Defendant

General Motors, LLC's Demurrer to the Complaint is OVERRULED.

Plaintiff to give notice.

Dated: July 8, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court